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Fight your own case

What you should know to play your own lawyer in a consumer court

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The consumer court gives you a chance to play a two-fold role in real life – that of a litigant and your own advocate in the consumer forum. That is, you can file your case and fight it to the logical end to enforce your consumer rights. The only downside is that if you drop the case, you don't have another person to hold responsible. But, if you win, you can sing your own praises. Though you can employ an advocate to do this, you must educate yourself about important information if you do decide to fight a case on your own.

It's advisable to engage an advocate dealing in consumer protection. Even if you wish to fight for yourself, seek expert help at least for the drafting of the complaint because, very often, the relief sought can be unclear and inadequate.

In the complaint, mention the full name and address of the complainant and the opposite party. Providing detailed information of the deficiency or defect is important to be able to present a good case. Specify the various kinds of relief you want to seek from the court. Generally, seek correction of the deficiency or defect and ask for compensation and costs. Don't forget to attach copies of all relevant papers; say bills, photos, letters, any legal notice sent etc. After this, personally file it at the consumer

forum and collect the complaint number. Every complaint has to be filed within two years of the occurrence of deficiency or defect which is called "limitation period". There is a small court fee payable at the consumer forum which differs from state to state. It may take a few days for the first hearing to take place, while it takes several months for a complaint to be disposed of.

If you're dissatisfied with the decision at the consumer forum, you can appeal to the state commission. This should be done within 30 days of the verdict being delivered.

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If you're unhappy with the judgment there, you can appeal to the National Commission in Delhi which is the apex forum in the country and finally, you can appeal to the Supreme Court. **■**

COMPLAINTS RECEIVED

Mobile Phones

Bad experience with Samsung mobile phone

I had bought Samsung Duos GT-B7722QKAINU from one of outlets at Sohna Road on 18th April. The very next day, there was a software problem, so I went to the service center at sector-31, Gurgaon. They replaced the set but the same problems exist:

Set hangs when deleting messages, non-functioning conference call option and internet, message details appearing in log calls, issues viewing contacts and incompatible Bluetooth headset regardless of the company.

I was to buy Nokia, but only went for Samsung for its dual-SIM feature. I made a big mistake buying it and would advise others not to waste their money on Samsung.

Contacted by: Vineet Kumar Ahuja

Answer By Consumermate:

Dear Consumer,

Thanks for sharing your inputs and suggestions regarding the product which would be beneficial in guiding prospective customers. Since your product is under

warranty, you can get it repaired free of cost. This appears to be a product with an inherent manufacturing problem. The quality maintained by the company is not good. There are deficiencies in the service on the part of the dealer and the company. You have to take legal action to put them in motion. Do not feel cheated as you can complain in the district consumer forum.

But before that, serve them with a registered letter in the shape of a legal demand notice containing all your details and intimate them, failing which you can file a complaint with the district forum.

Keep a record of all the communication for future reference. I am sure some sense will prevail over them and they will do something about your problems after receiving the notice itself.

Delay in obtaining spares for Nokia C6 mobile

I had approached Nokia Care at Sector 5, Dwarka on 3rd June to repair my mobile. Despite the fact that the order was from Delhi and not a remote village, about 26 days have passed and the offices have failed to either dispatch the spares to the Nokia

Care Center or even notify a probable date of supply.

The logistics support of the company definitely needs a relook. Kindly look into the reasons and help me take action at the earliest.

Contacted By: Raj Singh Chauhan

Answer By Consumermate:

Dear Consumer,

It is the duty of the company to provide the spare parts for the proper functioning of your product. Any delay in doing so would amount to deficiency in services. They must return the product duly repaired within a reasonable period. Beyond that period, they must arrange for an alternative mobile set.

Of course, this is a serious issue for the company who makes high claims for customer satisfaction. Nevertheless, at this stage we suggest writing a letter containing all the relevant details and problems you're facing to the company and the dealer from where you purchased the product. I hope they would be sensible enough to respond. Keep a record of all the communication exchanged. Thereafter, if the response is not positive you can file a consumer complaint.